

Tentative Rulings for July 2, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2502451	HERNANDEZ VS VOGEL	DEMURRER ON CROSS-COMPLAINT

Tentative Ruling:

Demurrer on 6th Cause of Action

The only cause of action at issue is the 6th cause of action in the Cross-Complaint for breach of contract. First Student contends this cause of action fails due to Labor Code § 3864. Labor Code § 3864 provides:

If an action as provided in this chapter prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement to do so executed prior to the injury.

(Labor Code, § 3864.)

The Complaint alleges First Student is Hernandez' employer. The parties appear to agree the incident occurred at a place First Students was doing business. The 6th cause of action is based on a provision in a lease agreement between Fernandes and First Students regarding alterations to the property at issue. (Cross-Complaint, ¶ 36.) Based on the allegations in the 6th cause of action, the lease agreement prohibited First Students from making any alterations to the property without Fernandes' permission. (Id.) It is alleged First Students breached this agreement by making alterations to the property without permission. (Id. at ¶ 38.) Fernandes asserts Labor Code § 3864 does not apply to this cause of action because it is not for indemnity and is based on a separate right under an agreement.

Labor Code § 3864 is not limited specifically to indemnity claims. It applies to other causes of action where the aim is to impose liability against an employer for the liability that it is exempted from under Labor Code § 3864. (*Alameda Tank Co. v. Starkist Foods, Inc.* (1980) 103 Cal.App.3d 428, 433. The Court in *Alameda Tank Co.* found the statute applied to causes of action for breach of contract, breach of expressed and implied warranties, fraud, negligent misrepresentation, and equitable estoppel, where the attempt was to seek to impose the same liability that an indemnity claim could. (Id. at p. 433.) The *Alameda Tank Co.* court provided:

The statute, above quoted, does not speak in terms of "indemnity"; its language is to "hold harmless." The contention here made was raised and rejected in *S.F. Examiner Division v. Sweat* (1967) 248 Cal.App.2d 493 [56 Cal.Rptr. 711.] We agree. The statutory right of the employer, in situations such as are herein involved, to be free from liability beyond that imposed by

the worker's compensation laws cannot be evaded by the ingenuity of counsel in presenting his claim for reimbursement under any variety of theories or nomenclature.

(*Id.* at p. 433.)

While Fernandes frames the 6th cause of action as a separate breach of contract claim, it does not appear to be. This cause of action includes allegations that the unauthorized changes resulted in the remnant of a sign to be left in the ground, which is alleged to be the cause of Hernandez' accident. (Cross-Complaint, ¶¶ 38-39; Complaint, ¶ 8.). In this cause of action, Fernandes seeks to recover damages – attorney's fees, costs, and potential settlement proceeds, and expenses from the underlying action. (Cross-Complaint, ¶ 41.) These are the types of damages sought on an indemnity claim. Based on these allegations, Labor Code § 3864 is seemingly applicable to this cause of action.

Accordingly, the Court sustains the demurrer as to the 6th cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than July 2, 2026, 5:00 p.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506427	RESNICK VS RIVERSIDE HEALTHCARE SYSTEM, L.P.	MOTION FOR RECONSIDERATION OF MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The hearing on this motion is continued to July 16, 2026, at 8:30 a.m. No further briefing is permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507246	SAAD VS MELHEM	DEMURRER ON CROSS- COMPLAINT

Tentative Ruling:

The demurrer is unopposed.

1st Cause of Action: Defamation – Libel and Slander

The Cross-Complaint alleges that, beginning January 1, 2026, Plaintiff made false statements about Defendant to third parties orally, in writing, and/or through electronic communications. (FACC ¶¶8-9.) It is alleged Plaintiff accused Defendant of engaging in illegal conduct, dishonesty, moral wrongdoing, and other acts intended to damage Defendant's personal and professional reputation and such false accusations were published to third parties including mutual acquaintances, business contacts, and members of the community. (Id. at ¶¶10-12, 18-20.) Consequently, Defendant suffered special damages not limited to loss of business opportunities, loss of income, and other economic damages. (Id. at ¶22.) The Cross-Complaint fails to plead defamation, libel and slander, to the requisite particularity as the defamatory statement is not specifically identified or set forth in the Complaint. (*Vogel v. Felice* (2005) 127 Cal.App.4th 1006, 1017.) **The Court sustains the demurrer as to the 1st cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

2nd Cause of Action: False Light

The second cause of action fails for the same reason as the first cause of action – failure to plead to the requisite particularity and specificity. **The Court sustains the demurrer as to the 2nd cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

3rd Cause of Action: IIED

The Cross-Complaint it fails to plead what the outrageous conduct is. It also fails to plead the element of severe emotional distress to the requisite specificity. (*Schlauch v. Hartford Accident Ins.* (1983) 146 Cal.App.3d 926, 936.) The Cross-Complaint fails to allege facts demonstrating the nature, extent, or duration of Cross-Complainant's alleged emotional distress. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) The Cross-Complaint merely alleges conclusory allegations. **The Court sustains the demurrer as to the 3rd cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

4th Cause of Action: Declaratory Relief

The FACC alleges an actual and justiciable controversy exists between Plaintiff and Defendant and that Plaintiff alleged, published, and continues to maintain Defendant engaged in unlawful, dishonest, and wrongful conduct that exposes Defendant to reputational harm, economic injury, and potential future liability. (FACC ¶¶42-44.) This is a proper subject for declaratory relief. (Id. at ¶¶45-46.) **Taking the allegations as true for purposes of demurrer, the Court overrules the demurrer as to the 4th cause of action.**

Special Demurrer

A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].) The Cross-Complaint fails to plead defamation and false light to the requisite level of specificity and particularity such that the Court is unable to discern whether the alleged defamatory statements concerned protected speech. **The special demurrer for uncertainty is sustained with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

Moving party Pierre Saad is ordered to submit a proposed order consistent with this ruling by no later than July 2, 2026, 5:00 p.m.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507277	EH95 LLC VS AYAN	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

On May 14, 2026, the date this motion was originally set for hearing, Defendants Yusuf Ayan and Artext Wholesale, LLC ("Defendants") filed a Notice of New Authority iso Motion, citing *Santana v. Studebaker Health Care Center, LLC* (2026) 120 Cal.App.5th 1. On this basis, the Court continued the hearing on the motion to July 2, 2026, to allow the parties to provide briefing on such new authority.

In their supplemental brief, Defendants argue, under *Santana*, the court should resolve the ambiguity created by § 7.2 of the Agreement through contract interpretation, rather than treating it as a lack of mutual assent. It also argues to the extent the Agreement does not provide the location of arbitration or how to select an arbitrator, that can be resolved using C.C.P. § 1281.6, and if the court determines § 7.2 is unconscionable, it should be severed, not used to find the Agreement invalid. In its supplemental opposition, Plaintiff EH95, LLC ("Plaintiff") argues *Santana* does not undermine the Court's tentative ruling because the court in *Santana* dealt with inconsistent provisions in multiple documents that created ambiguities on how arbitration should be conducted, but there was a clear intent to arbitrate. Here, on the other hand, the problem is not with how the arbitration will proceed, but a lack of agreement as to under what circumstances arbitration would occur at all.

Defendants are correct that the court in *Santana* held the trial court there erred in finding a lack of mutual assent to an arbitration agreement, rather than using contract

interpretation methods to resolve ambiguities when those ambiguities were created by conflicting terms in various documents. (*Id.* at 12-13.) However, the contract at issue in *Santana* was very different than the arbitration provision in the Agreement here.

In *Santana*, the plaintiff was an employee of a skilled nursing facility who signed five relevant documents when he was hired: a California Mutual Dispute Resolution Agreement, an Alternative Dispute Resolution Policy, an Agreement to Be Bound by Alternative Dispute Resolution Policy, and a Confidentiality Agreement, and an Employee Handbook, some of which contained conflicting provisions about who would conduct the arbitration, how the arbitrator should be selected, and the extent of the PAGA waiver. (*Id.* at 8-9, 13-15.) The court acknowledged, however, that each of the documents showed a clear intent to arbitrate. (*Id.* at 13-15.) Here, on the other hand, the entirety of the arbitration provision in the Agreement states as follows:

Any dispute arising from this Agreement shall first be resolved through arbitration in Riverside County, California.

If arbitration is not a viable option, the dispute shall be resolved exclusively in the Riverside County Superior Court.

(Ayan Decl., Ex. A, §§ 7.1-7.2 [emphasis added].)

There is no ambiguity created by conflicting terms, but instead a lack of any information explaining what “viable” means, when arbitration would be considered non-viable, or who gets to make that decision.

As the court provided in *Santana*:

The consent of the parties to a contract must be free, mutual, and communicated by each to the other. (Civ. Code, §§ 1565, 1581.) The absence of mutual consent, i.e., the failure to reach a meeting of the minds on all material points, prevents the formation of a contract, including an agreement to arbitrate. ... Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable. ... Although the terms of a contract need not be stated in the minutest detail, it ... must evidence a meeting of the minds upon the essential features of the agreement. ... Whether a term is material or essential depends on its relative importance to the parties and whether its absence would make enforcing the remainder of the contract unfair to either party.

(*Santana, supra*, 120 Cal.App.5th at p. 12 [emphasis added][internal quotations and citations omitted].)

Here, without knowing how to determine if and when arbitration is viable, Plaintiff could not have known what it was agreeing to, and there could be no meeting of the minds as

to under what circumstances arbitration would occur. Because that is the essence of an arbitration agreement, Plaintiff cannot be said to have assented to arbitration. Defendants' other arguments provide no assistance. While they argue ambiguities regarding who is to arbitrate the matter and how the arbitrator would be selected could be resolved by C.C.P. § 1281.6, the issue here is not a matter of ambiguity, but lack of assent. Knowing who and how to conduct arbitration only matters if there is a clear agreement to arbitrate, and there is none here; thus, these issues are irrelevant under the circumstances.

Additionally, severing the offending provision cannot make the arbitration agreement valid. The issue of viability of arbitration is clearly part of the agreement, which is only two sentences. (Ayan Decl., Ex. A, §§ 7.1-7.2.) While a court has discretion to sever unconscionable provisions, "[a]t the outset, a court should ask whether the central purpose of the contract is tainted with illegality. ... If so, the contract cannot be cured, and the court should refuse to enforce it... Even if a contract can be cured, the court should also ask whether the unconscionability should be cured through severance or restriction because the interests of justice would be furthered by such actions." (*Jenkins v. Dermatology Mgmt., LLC* (2024) 107 Cal.App.5th 633, 647-648 [internal quotations and citation omitted].) Here, the issue is not one of unconscionability, but lack of assent, and even if it was, the lack of clarity as when arbitration occurs (i.e., is "viable") taints the entire purpose of the arbitration agreement. Therefore, § 7.2 cannot be severed to make the arbitration provision valid.

The court further incorporates its tentative ruling for May 14, 2026, the date this motion was originally set for hearing, as follows:

In its reply, Defendants argue for the first time that the FAA applies and the issue of whether the arbitration agreement is enforceable should be decided by arbitrator. (Reply, pp. 3:15-4:4, 4:21-5:5.) The general rule of motion practice is that new evidence and/or arguments are not permitted in reply papers. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316; *American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453 ["Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument."].)

Before granting a petition to compel arbitration, the court must determine whether a valid arbitration agreement exists. (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219; C.C.P. § 1281.2.) Defendants fail to establish that an arbitration agreement exists.

Defendants attach the Agreement that contains a dispute resolution provision stating that "[a]ny dispute arising from this Agreement shall first be resolved through arbitration in Riverside County, California." (Decl. of Yusuf Ayan ["Ayan Decl."], Ex. A, § 7.1.) This is sufficient prima facie evidence of an arbitration agreement. While Plaintiff mainly attacks the agreement to arbitrate on an unconscionability basis, some of the arguments he raises (that the agreement fails to identify material terms and fails to

explain when arbitration is “viable”) affect whether or not an agreement to arbitrate even exists.

While there is a strong policy favoring arbitration, “[t]here is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate and which no statute has made arbitrable.” (Toal, supra, 178 Cal.App.4th at 1220; Adajar v. RWR Homes, Inc. (2008) 160 Cal.App.4th 563, 569.) Mutual assent is required in every contract. (Esparza v. Sand & Sea, Inc. (2016) 2 Cal.App.5th 781, 787-788.) “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understanding.” (Ibid.) “When language in a contract is clear and explicit, that language governs interpretation. ... To the extent there is any ambiguity in this language we construe it against defendants, the drafters of the language.” (Id. at 789.)

Additionally, an arbitration agreement that is illusory is not enforceable. (See Saika v. Gold (1996) 49 Cal.App.4th 1074, 1080.) The entirety of the arbitration provision in the Agreement provides as follows:

Any dispute arising from this Agreement shall first be resolved through arbitration in Riverside County, California.

If arbitration is not a viable option, the dispute shall be resolved exclusively in the Riverside County Superior Court.

(Ayan Decl., Ex. A, §§ 7.1-7.2 [emphasis added].)

There is nothing in the Agreement explaining what “viable” means, when arbitration would be considered non-viable, or who gets to make that decision. As Defendants drafted the Agreement, the ambiguity created by this failure is construed against them. (Esparza, supra, 2 Cal.App.5th at 789.)

If a party “does not know what he is signing ... mutual assent is lacking.” (Rosenthal v. Great W. Fin. Sec. Corp. (1996) 14 Cal.4th 394, 415.) Here, without knowing how to determine if and when arbitration is viable, Plaintiff could not have known what he was being agreed to. As a result, he did not assent to arbitration.

Also, the arbitration provision appears illusory since any time Defendants do not want to arbitrate, they could simply claim arbitration was not viable. The odds of a plaintiff successfully claiming arbitration is not viable when viability is not defined anywhere in the agreement are low, making the arbitration provision effectively one-sided.

Given that Plaintiff could not assent to arbitration because he could not understand the terms of the agreement without an explanation of how and when arbitration is “viable,” and that the provision appears illusory, the Court finds that Plaintiff did not agree to arbitrate his claims with Defendants. “Absent a clear agreement to submit disputes to arbitration, courts will not infer that the right to a jury trial has been waived.” (Adajar v. RWR Homes, Inc. (2008) 160 Cal.App.4th 563, 569.)

Because there is no agreement to arbitrate, it is unnecessary to address the issue of unconscionability.

The motion is denied.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600425	ALLY BANK VS GHUKASYAN	APPLICATION FOR WRIT OF POSSESSION - CLAIM AND DELIVERY

Tentative Ruling:

The hearing is continued to August 13, 2026, at 8:30 a.m., because there is no proof of service of the Summons and Complaint on Defendant.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600687	SHARABY VS TESLA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The hearing is continued to July 30, 2026, at 8:30 a.m. in light of the Notice of Errata re: Plaintiff's Declaration in Support of Motion to Compel Arbitration filed June 26, 2026, due to a missing signature on the previously filed declaration, and Defendant's new evidence in its reply as presented in the Second Declaration of Raymond Kim filed June 25, 2026. Plaintiff may file a sur-reply, not to exceed 10 pages, served and filed no later than July 23, 2026.

Moving party is ordered to give notice.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2601598	ALLY CAPITAL CORP VS ALBA	APPLICATION FOR WRIT OF POSSESSION - CLAIM AND DELIVERY

Tentative Ruling:

The hearing is continued to August 13, 2026, at 8:30 a.m., because there is no proof of service of the Summons and Complaint on Defendant.